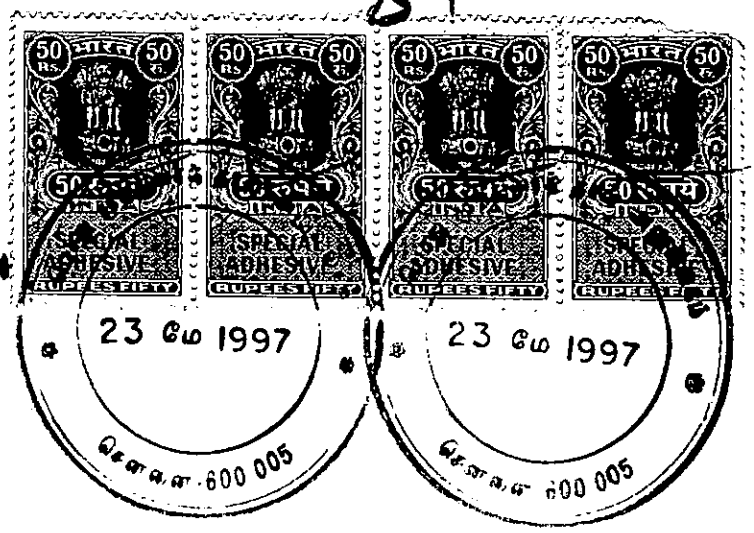
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THE COMPANIES ACT, 1956
COMPANY LIMITED BY SHARES

MEMORANDUM OF ASSOCIATION

OF

NUCLEUS SATELLITE COMMUNICATIONS (MADRAS) PRIVATE LIMITED

I. The Name of the Company is "**NUCLEUS SATELLITE COMMUNICATIONS (MADRAS) PRIVATE LIMITED**".

II. The registered Office of the Company will be situated in the **State of Tamil Nadu.**

III. The Objects for which the Company is established are :

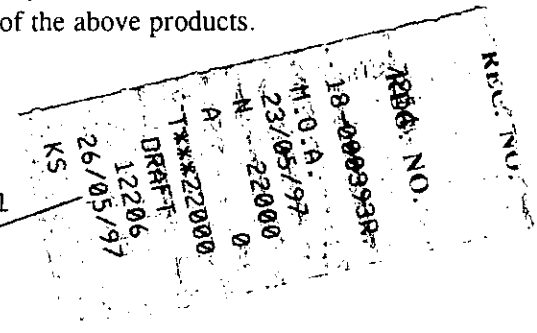
(A) **THE MAIN OBJECTS TO BE PURSUED BY THE COMPANY ON ITS INCORPORATION ARE:**

1. To carry on all kinds of business of Manufacturers, assemblers, suppliers, fabricators, importers, exporters, makers, buyers, sellers, hirers, renderers, distributors, agents, brokers, stockists, commission agents and dealers of all kinds and varieties of Satellite Dish Antennas, Satellite Communication Systems and Equipments, Low Noise Block Converter, Receivers (both Digital and Analog) and all other associated accessories, systems and equipments of all kinds, including telecommunication equipments and Cables.

2. To carry on in India or elsewhere the business of acting as Traders, Distributors, wholesale / retail Agents, brokers, contractors, service commissioners and consultants for sellers, buyers, exporters, importers, manufacturers, tradesmen, insurers and others and generally to undertake and carry out agency, trading, distributorship and commission agency business in respect of the above products.

B N Harish

accordance with Regulation 10 (2) the Companies Regulations 1956 a Copy of the Certificate of Incorporation is attached.



1

Registrar

3. To carry on in India or elsewhere the business of acting as Consultants and advisers and to operate training centres and conduct seminars in India or Abroad and to carry on trade or business of providing complete services in respect of matters relating to Dish Antenna Systems, Electronic Communication Systems including technical, operational, industrial know how, product and/or design engineering, scientific and other research feasibility studies, financial budgetary control, taxation, legal, educational, industrial and labour relations and all other matters in any way connected with or relating thereto.

(B) **THE OBJECTS INCIDENTAL OR ANCILLARY TO THE ATTAINMENT OF THE ABOVE MAIN OBJECTS ARE :**

1. To purchase, take on lease or in exchange or otherwise acquire, hold, manage and work on any land, estates, buildings, tenements, grants, concessions and easements and hereditaments or other properties (whether freehold, leasehold or other tenure) required for the attainment of the main objects of the company.

2. To take on lease, hire, purchase or otherwise acquire, erect, construct work, maintain, improve lawn, factories, building structures and facilities, test houses, laboratories, plant, machineries, all other appliances, apparatus and conveniences required for the purpose of the company.

3. To establish and run warehouses, stores, depots, showrooms, cold storages, sales houses, exhibitions, mobile shops, offices, branches, agencies and other establishments in any part of the world as may be deemed expedient for business of the company.

4. To procure the incorporation, registration or other recognition of the company in any country, state or place and to establish and regulate agencies for the company's business, and to apply or join in applying, to any Parliament, local Government, Municipal or other authority or body, Indian, British, colonial or foreign, for any Acts, decrees, concessions, orders, rights or privileges, that may seem conducive to the company's objects or any of them, and to oppose any proceedings or applications which may seem calculated, directly or to prejudice the company's interests.

5. To receive money on deposit or loan and borrow or raise money in such manner as the Company may think fit without doing Banking business within the meaning of the Banking Regulation Act, 1949 and rules or regulations framed thereunder and in particular by issues of debenture stock and to secure the repayment of any money borrowed, raised or owing by mortgage, charge or lien upon all or any of the property or assets of the Company (both present and future), including its uncalled capital, guarantee the performance of contractors or obligation undertaken by the Company or any other person on behalf of the Company as the case may be.

6. To place to reserve or to distribute as bonus shares among the members or otherwise to apply as the Company may from time to time think fit, any monies received by way of premium on shares and on debentures issued at a premium by the Company and any monies received in respect of dividends accrued or forfeited shares and monies arising from the sale by the Company of forfeited shares.

7. To create any Depreciation Fund, Reserve Fund, Sinking Fund, Insurance Fund, Gratuity Fund, Superannuation Fund or any other special fund whether for depreciation, repairing, replacing, improving, extending or maintaining any of the property and assets of the Company to meet any specific or contingent liability and to

make any appropriation or transfers from one another or for any other purpose conducive to the interests of the Company.

8. To subscribe or guarantee for any national, charitable, benevolent public, general or useful object or for any exhibition, subject to the provisions of the Companies Act, 1956 or any other law for the time being in force.

9. To open any kind of account including current account, savings bank account, overdraft, loan, cash credits in any bank to make, accept, endorse and execute promissory notes, bill of exchange and other negotiable instruments.

10. To draw, make, accept, endorse, discount, negotiate, execute and issue bills of exchange, promissory note, bills of lading, warrants, debentures and other negotiable or transferable instruments or securities.

11. To invest any monies of the Company in such investment as may be thought proper and to hold, sell or otherwise deal with such investments.

12. To lend and advance money, either with or without security and give credit to such persons (including Government) and upon such terms and conditions as the Company may think fit.

13. To make advances for the purchase of articles or materials of all kinds, both raw and manufactured which are required for the purpose of the Company.

14. To undertake and execute any trust, the undertaking of which may seem to the Company desirable, either gratuitously or otherwise and vest any real or personal property, rights or interest acquired by or belonging to the company in any person or company on behalf of or for the benefits of the Company and with or without any declared trust in favour of the Company.

15. To establish and maintain or procure the establishment and maintenance of any contributory or non-contributory pensions or superannuation funds for the benefit of and give or procure the giving of donations, gratuities, pensions, allowance or emoluments to any persons who are or were at any time in the employment or service of the Company, or its allied or were at any time Directors, Managing Directors or Officers of the Company and the wives, widows, families and dependents of any such person and also establish, subsidize and subscribe to any institutions, associations, clubs, for funds calculated to be for the benefit of or to advance the interests and well being of the Company and make payments to or towards the insurance of any such persons as aforesaid and do any of the matters aforesaid either alone or in conjunction with any other company.

16. To pay out of the funds of the Company all expenses which the Company may lawfully incur with respect to the preliminary expenses and other formation and registration expenses incurred by the promoters.

17. To distribute among the members in specie any property of the Company, or any proceeds of sale or disposal of any property of the Company, in the event of its being wound up. No distribution amounting to a reduction of capital can be made except with the sanction of the Company by Special Resolution and confirmation by Court as required by law for the time being in force.

18. To take over or otherwise acquire and hold shares in any other company or companies having objects altogether or in part similar to those of this company.

19. To collaborate with any of the Foreign Firms or Local Firms either for the purchase of machinery or for the technical know-how on any terms mutually agreed and carry on the business in the most economical manner.

20. To pay for any service rendered to the company or for supply of technical know-how for acquisition of technology, properties, privilege by the company either in the shares of the company and partly in shares or partly in cash or otherwise.

21. To amalgamate, enter into any partnership or partially amalgamate with or acquire interest in the business of any other company, person or firm carrying on or engaged in, or about to carry on or engage in any business or transaction included in the objects of the company, or enter into any arrangement for sharing profits, or for co-operation, or for limiting competition or for sharing mutual assistance with any such person, firm or company or to acquire and to give or accept by way of the consideration for any of the acts or things aforesaid or property acquired, any shares, debentures, debenture stock or securities that may be agreed upon, and to hold and retain or sell, mortgage and deal with any shares, debentures, debenture stock or securities so received.

22. To establish or promote or concur in establishing or promoting any company or companies for the purpose of acquiring all or any of the properties rights and liabilities of the company and to acquire all or any part of the shares, debentures or other securities of any such other company or companies.

23. To sell, lease, mortgage, hypothecate, transfer, let out, exchange or otherwise deal with the undertaking of the Company or any property whatever, or any part thereof for such consideration as the Company may think fit, and in particular for shares, debentures and other securities of any other companies having objects altogether or in part similar to those of this Company and if thought fit to distribute the same among the share holders of the Company subject to the provisions of the Companies Act, 1956.

24. To pay for any lands, immovable or movable property or assets of any kind acquired or to be acquired by the Company or for any services rendered or to be rendered to the Company and generally pay or discharge the consideration to be paid or given by the company in money or in shares (whether fully paid up) or debentures or debenture stock.

25. To acquire and undertake the whole or any part of the business property and liabilities of any person, firm or any company carrying on any business which the company is authorised to carry on or possessed of property suitable for the purpose of the company.

26. To apply for purchase or otherwise acquire and protect, probing and renew in any part of the world, any patents, patent rights, brevets d'invention, trade marks design licences, protections, concession and the like conferring of exclusive or non-exclusive or limited right to their use or any secret or other information as to any invention, process of privilege which may seem capable of being in use for any of the Company or acquisition of which may seem calculated directly or indirectly to benefit the Company and to use, exercise, develop or grant licenses or privileges in respect of, or otherwise turn to account, the property, rights and information acquired and to carry on any business in any way connected therewith.

27. To expend money in experiments on and in improving or seeking to improve any patents, rights, inventions, discoveries, processes or information of the Company or which the Company may acquire or propose to acquire.

28. To sell or otherwise give distributor or dealership rights in respect of the Company's products, to persons, companies or firms, for certain areas and for a specified period or permanently, and to purchase or otherwise acquire such rights in respect of other companies, firms, products.

29. To establish and maintain any agencies or branch offices in any part of the world for the conduct of the business of the company or for the sale of any materials or things for the time being at the disposal of the Company for sale and adopt means of making known or promoting the use of all or any of the manufacturers products or goods of the Company or any articles or goods traded or services dealt in by the Company in any way that might be thought advisable including the posting of bills in relation thereto and the issue of circulars, books, pamphlets and price lists and the conducting of the competitions, exhibitions and the giving prizes and rewards.

30. To act as agents, or brokers and as trustees for any person or Company and to undertake and perform subcontracts and to do all or any of the above things, in any part of the world, and either as principals, agents, trustees, contractors, or otherwise and either alone or jointly with others and either by or through agents, subcontractors, trustees or otherwise.

31. To apply the assets of the Company in any way in or towards the establishment, maintenance or extension of any association, institution or fund in any way connected with any particular trade or business or commerce, generally and particularly, including any association, institution of fund for the protection of the interest of master, owners and employers against loss by bad debts, strikes, combinations, fire accidents or otherwise or for the benefits of any clerks, workmen or others at any time employed by the Company or any of its predecessors in business or their families or dependents and whether or not in common with other persons or classes of persons and in particular of friendly, co-operative and other societies, reading rooms, libraries, educational and charitable institutions, refectories, doing and recreation rooms, places of worship, schools and hospitals and to grant gratifications, pensions and allowances and then to contribute to any funds raised by public or local subscriptions for any purpose whatsoever, subject to the provision of the Companies Act.

32. To aid, pecuniary or otherwise, any association, body or movement having for an object the solution, settlement or surmounting of industrial or labour problems or troubles or the promotion of industry of trade.

33. To recruit, train, educate, employ and bring-up supervisors and other persons for the purpose of efficient performance of the Company.

34. To undertake Research and Development work, to improve the business of the company, and to improve the quality of the products or articles manufactured or dealt with by the company and employ scientists, experts and others and remunerate them, to apply for and get and register any patent rights, for any invention or inventions or obtain any privileges or rights in respect of the same in any part of the world, in respect of any of the products, projects, services etc., dealt with or proposed to be dealt with by the Company.

35. To indemnify the members, officers, directors, secretaries and other employees of the Company against proceedings, costs damages, claims, and demands in respect of anything done or ordered to be done by them for, and in the interests of the Company or for any loss, damages, or misfortune, whatever, which shall happen in the execution of the duties of their office or in relation thereto.

36. To insure with any person or company against losses, damages risks and liabilities of any kind which may affect the Company either wholly or partly and if thought fit, to effect any such insurance by joining of becoming members of any mutual insurances, protection or indemnity association, federation or society and to accept any such insurance or any part thereof for the account of the Company.

37. To initiate, conduct, defend, compound, or abandon any legal proceedings by or against the Company or its officers or otherwise concerning the affairs of the Company and also to compound and allow time for payment or satisfaction of any debts due and of any claim or demands by or against the Company.

38. To adopt such means of making known the products and services of the Company as may seem expedient and in particular by advertising in the press, by circulars, by purchase and exhibition of works of art or interest, by publication of books and periodicals and by granting prizes and rewards.

39. To enter into any arrangements and to take all necessary or proper steps with Governments or with other authorities supreme-national, local, municipal or other negotiations or any operations for the purpose of directly or indirectly carrying out the objects of the Company or effecting any modification in the constitution of the Company for furthering the interests of its members and to oppose any such steps taken by any other company, firm or persons which may be considered likely, directly or indirectly to prejudice the interest of the Company or its members and to promote or assist the promotion, whether directly or indirectly, of any legislation which may appear to be in the interests of the Company or its members and to oppose and resist, whether directly or indirectly, any legislation which may seem disadvantageous to the Company and to obtain from such Government authority or any company any charters, contracts, decrees, rights, grants, loans, privileges or concessions which the Company may think it desirable to obtain and carry out, exercise and comply with any such arrangements, charters, contracts, decrees, rights, privileges or concessions.

40. To employ experts and others, who shall make surveys, experiments, examine and make trials of lands in order to ascertain their suitability for fruit growing, and collect and supply information as to methods of planting fruits, etc., and rendering the same marketable.

41. To enter into any agreement for sharing of profits, amalgamation, union of interest, co-operation, joint venture, reciprocal concession or otherwise with any person or company carrying on or engaged in or about to carry on or engage in any business or transaction capable of being conducted so as directly or indirectly to benefit the company and to lend money, to guarantee the contracts or otherwise acquire shares and securities of any such company and to sell, hold, re-issue with or without guarantee, or otherwise deal with the same.

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(C) THE OTHER OBJECTS OF THE COMPANY ~~ARE~~ NOT INCLUDED IN (A) and (B) ABOVE :-

1. To carry on the business of manufacturing, refining, processing, preservation, dehydration, canning, bottling, freezing, packing and repacking of milk, milk powder, cream, butter, cheese, condensed milk and baby foods, aerated, non-aerated minerals and artificial water drinks, ghee, fats, snacks, fast foods, cooked or boiled or fried foods, sweet, namkin, honey, culture and provisions of all kinds and every descriptions and to carry on the business of export, import, brokers, commission agents and dealers of food products of all kinds.

2. To engage in all kinds of forestry work and to carry on business as timber growers, timber merchants, saw mill proprietors, and to buy, sell, plant, grow, fell, prepare for market, import, export and deal in timber and wood of all kinds and establish basket making factories and works.

3. To engage in the business of cotton dealers, ginners, balers, spinners, sugar manufacturers, oil pressers and in the business of growing, preparing and marketing of all kinds of fibrous materials, sugar and oil.

4. To manufacture boxes, cartons, paper and other bags and packing receptacles generally, bottlers, canners, packers and providers of all kinds of goods, products or wares necessary or desirable for use in connection with the business of the company.

5. To own, maintain and run hotels, restaurants, boarding and lodging houses, canteens, rest house for the benefit of the company.

6. To purchase or otherwise acquire Agricultural lands, estates, gardens, lakes and to sell, lease out, repair and maintain and improve upon the name and land, purchase, construct, improve, repair, take on lease, let out, maintain, sell or deal in buildings, offices, godowns, factories, plant and machineries of all kinds and equipments, water tanks and other kinds of structural or ordinary buildings.

7. To promote and undertake the formation and establishment of such institutions (Industrial, Agricultural, Trading, Manufacturing or Others) as may be considered to be advantageous for profitable working of the company.

8. To undertake, carry out, promote and sponsor any programme of rural development intended for the betterment of the people living in rural areas and improving their moral, economic and social status, and to incur any expenditure in the execution and promotion of such programmes, including the publication of literature, magazine, books and leaflets, organising seminars, granting scholarships and awards and such other assistance and the transfer without consideration or at a concessional rate or divesting the ownership of any property of the company in favour of any public body, institution / Trust recognised or approved by the Central or State Government of any authority authorised under any law for the time being in force and engaged in such programmes.

9. To act as carriers, transport operators, fleet owners, travel agents and clearing and forwarding agents.

10. To act as financiers, lessors, contractors, underwriters, authorised export house, industrial and business promoters and collaborators, without conducting the business of banking within the meaning of Banking Companies Regulation Act.

No. of Corrections : 1 (one)

11. To carry on all kinds of agency business and to take part in the managements, supervision or control of the business or operations of any other company association, firm or person (and to act as the agent, or other office of any such company, association, firm or person) and in connection therewith to appoint and remunerate any directors, accountants and other experts or agents.

12. To carry on the business of import, export, distribution of all merchandise and to act as agents, stockists, distributors for firms and companies in India and abroad.

13. To buy, sell, manufacture, refine, manipulate, import, export and deal wholesale and retail in commodities, substances, apparatus, of all kinds, capable of being used or which can conveniently be dealt with by the Company in connection with any of its objects.

14. To carry on any scientific research or other research which may be of benefit to the Company to establish, conduct and carry on any educational or other institution and research or such other activities for the attainment of the above objects.

15. To employ experts to investigate and examine into the condition, prospects, value, character and circumstances of any business concerns, and undertakings and generally of any assets, property or rights.

16. To carry on all or any of the following businesses, namely, cotton and fibre spinners and doublers, flax, hemp and jute spinners, linen manufacturers, flax, hemp, jute and woolen merchants, wool combers, worsted spinners, woolen spinners, cotton ginners, cotton, fibre and yarn merchants, worsted stuff manufacturers, bleachers and dyers and makers of vitriol, bleaching and dyeing materials, and to purchase, gin, comb, prepare, spin, dye and deal in kappas, cotton, flax, hemp, jute, wool, silk and other fibrous substances and to weave or otherwise manufacture, buy and sell and deal in cloth, linen and other goods and fabrics, whether textiles, felted netted or looped.

17. To plant, cultivate, grow, produce and raise all varieties of cotton, paddy millets, sugar cane, coconut and other agricultural produce and fruit trees on the lands owned by the Company or taken on lease and generally to carry on agricultural and horticultural operations and for the purpose, purchase, take on lease or in exchange or otherwise acquire estates, farm and any land with right of way and other privileges, easements and concessions.

18. To carry on the business of national and international tourist agents, organisers and contractors and engage in public transport by land, water and/or air and deal in automobiles of all kinds and engage in services connected therewith.

19. To deal in, engage in, and manufacture radio, and deal in television gramophone, gramophone records, cinematograph and phonographic apparatus, musical instruments, devices, accessories, appliances, materials and other requisites there for, all metals like tin, copper, iron, lead and bullion and amalgams and articles made therefrom.

20. To carry on the business of manufacture of Bio-gas and other non-conventional energy sources.

21. To engage, manufacture, sell and deal in equipments required for Bio-gas and other technologies relating to non-conventional energy generation.

22. To engage, manufacture, sell and deal in agricultural tools and implements.

23. To buy, sell, assemble, import, export, install, dismantle, procure, vend or otherwise deal in Computer Hardware, machines, accessories, peripherals, components, boards, motors, or other products, related, whether electrically or electronically to the field of Computers.

24. To design, draw, programme, develop, convert, prepare, install, implement and otherwise produce computer software and deal, buy, make, sell, export, import, deal as agents, represent as distributors, brokers, selling agents, buying agents, procure, vend or otherwise deal in Computer Software and related products.

25. To undertake training courses, programmes and expositions with or without fees, in the use and maintenance of Computer Software Applications or hardware, peripheral component and electricals, related to the field of Computers.

IV. **The liability of the Members is limited.**

V. **The Authorised Share Capital is Rs. 50,00,000/-(Rupees Fifty Lakhs only) divided into 5,00,000 (Five Lakhs) Equity Shares of Rs.10/- (Rupees Ten) each** with power of the Company to increase or reduce the said Capital and to issue any part of its Capital, original or increased with or without any preferences, priority or special privilege or subject to any postponement of rights or to any conditions or restrictions, so that unless the conditions of issue shall otherwise be subject to the powers herein contained. The right and privileges attached to any shares having preferential, qualified or special rights, privileges or conditions attached thereto may be altered or dealt with in accordance with the accompanying Articles of Association but not otherwise.

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VI. We, the several persons whose names and addresses and descriptions are hereunder subscribed are desirous of being formed into a Company, in pursuance of this Memorandum of Association, and we respectfuly agree to take the number of shares in the Capital of the Company set opposite our respective names.

Sl. No.	Names, Addresses, Descriptions and Occupations of the Subscribers	Number of Equity Shares taken by each Subscriber	Signatures of Subscribers	Signature, Name, Address Description and Occupation of Witness
1	V. RAMAN S/O Dr. V. VENKATA-SUBRAMANIAN 10-A. SRI SAI NAGAR KARPAGAM AVENUE, R.A. PURAM, MADRAS-28 - BUSINESS -	100 (ONE HUNDRED)		
2	V. LAKSHMANAN S/O DR. V. VENKATA-SUBRAMANIAN 10A. SRI SAI NAGAR, KARPAGAM AVENUE, R.A: PURAM, MADRAS-28 - BUSINESS -	100 (ONE HUNDRED)		S.R. CHANDRASEKARAN S/o V. SUBRAMANYAM FLAT #4, "SAHANA" 9, SECOND MAIN ROAD RAJA ANNAMALAPURAM CHENNAI. 600028 CHARTERED ACCOUNTANT
3	R. RAJA RAMAN S/O. M.N. RAMACHANDRAN 10-A SRI SAI NAGAR KARPAGAM AVENUE R.A. PURAM MADRAS-28 - SERVICE -	100		
	TOTAL	300		

3. R. RAJARAMAN,
S/O M.N. RAMACHANDRAN. 100
10-A SRI SAI NAGAR, (ONE HUNDRED)
KARPAGAM AVENUE,
R.A. PURAM, MADRAS-28
- SERVICE -

Date : 23/05/1997

Place : CHENNAI

DORES
CO No. 38400 S No:
Filed/Rec/Reg on 11.6.97
Checked by
ADDL ASST.ROC.